

STANDING ORDER NO. 4/2 /2012

PROCEDURE FOR PROSECUTION OF HOOKAH BARS AND SMOKING IN PUBLIC PLACES, HOTELS, RESTAURANTS ETC. IN DELHI UNDER COTPA-2003 AND PROHIBITION OF SMOKING IN PUBLIC PLACE RULES-2008.

This Standing Order aims to lay down rules and procedures related to prosecution of **Hookah Bars** and Smoking in Public Places, Hotels, Restaurants etc. in Delhi under **the Cigarettes and other Tobacco products (Prohibition of Advertisement and Regulation of Trade and Commerce, Production, Supply and Distribution) Act, 2003 (COTPA-2003)** and **Prohibition of Smoking in Public Places Rules, 2008**, which has been enacted by the Central Govt. **wherein;**

- (i) **Smoking** has been prohibited in a **public place**;
 - (a) **Public Place** means "any place to which the public have access, whether as of right or not, and includes auditoriums, hospital buildings, railway waiting rooms, amusement centres, restaurants, public offices, court buildings, educational institutions, libraries, public conveyances and the like which are visited by general public but does not include any open space" -Rule 3(L) of COTPA - 2003.
 - (b) **Smoking** means, "smoking of tobacco in any form whether in the form of cigarette, cigar, beedis or otherwise with the aid of a pipe, wrapper or any other instruments;" - Rule 3(n) of COTPA - 2003.
 - (c) **Tobacco** means, "Cigarettes, Cigars, Cheroots, Beedis, Cigarette tobacco, pipe tobacco and **hookah** tobacco, Chewing tobacco, Snuff, Pan masala or any chewing material having tobacco as one of its ingredients (by whatever name called), Gutka, Tooth powder containing tobacco" - Rule 3(p) of COTPA - 2003 and as specified in the Schedule.

- (ii) The owner, proprietor, manager, supervisor or in charge of the affairs of a hotel having thirty or more rooms or restaurant having a seating capacity of thirty persons or more and the manager of the airport may provide for a '**smoking area**' - Rule 4 of Prohibition of Smoking in Public Places Rules, 2008.
- (iii) The **smoking area or space** shall be a separately ventilated smoking room that -
 - a) is physically separated and surrounded by full height walls on all four sides;
 - b) has an entrance with an automatically closing door normally kept in closed position;
 - c) has an air flow system i.e. exhausted directly to the outside and not mixed back into the supply air for the other parts of the building;
 - d) has negative air pressure in comparison with the remainder of the building;
- (iv) The smoking area or space shall not be established at the entrance or exit of the hotel, restaurant and the airport and shall be distinctively marked as "**Smoking Area**" in English and one Indian language, as applicable.
- (v) The smoking space shall be used only for the purpose of smoking and no other service(s) shall be allowed.
- (vi) The smoking rooms (**in hotels having 30 or more rooms**) so designated, shall form a separate section in the same floor or wing. In case of more than one floor / wings, the room shall be in one floor, as the case may be.

- (vii) The smoke from such room shall be ventilated outside and must not infiltrate / permeate into the non-smoking areas of the hotel / eating house.
- (viii) **"No Smoking Board"** (as per Schedule II of the Prohibition of Smoking in Public Places Rules, 2008) should be displayed at the entrance of the public place. In case there are more than one entrance, at each such entrance and conspicuous place(s) inside. In case, if there are more than one floor, at each floor including the staircase and entrance of the lift(s) at each floor.
- (ix) The owner, proprietor, manager, supervisor or in-charge of the public place shall ensure that no **ash-trays, matches, lighters or other things designed to facilitate smoking** are provided in the public place.
- (x) The owner, proprietor, manager, supervisor or in-charge of a public place shall notify and cause to be displayed prominently the name of the person(s) to whom a complaint may be made by a person(s) who observes any person violating the provisions of these Rules.

[As per the clarification sought from Directorate of Health Services, Govt. of NCT of Delhi, the Hookah / Sisha Bars/ Restaurants come under the purview of public places. Hookah Bars are violating the sections of Cigarette and Other Tobacco Products Act (COTPA), 2003 and Delhi Prohibition of Smoking and Non Smokers Health Protection Act 1996. Smoking is completely banned in public places as per Cigarette and Other Tobacco Products Act (COTPA), 2003 and Delhi Prohibition of Smoking and Non Smokers Health Protection Act 1996. Hookah is covered under the schedule of tobacco products mentioned under section 3(p) of COTPA 2003. Therefore, Ban on Hookah bars can be imposed].

PENALITY

- Any violation of the above mentioned provisions are **compoundable** and **punishable** with fine, which may extend to **two hundred rupees** as per Rule 21(1) of COTPA -2003.
- If the owner, proprietor, manager, supervisor or the authorized officer of a public place fails to act on a report of such violation, the owner, proprietor, manager, supervisor or the authorized officer **shall be liable to pay fine equivalent to the number of individual offences** - (Rule 3(3) of Prohibition of Smoking in Public Places Rules, 2008).

AUTHORISED OFFICER

The Lieutenant Governor of the National Capital Territory of Delhi vide Notification No. F.1(13)/2004-05/DHS/TCA/Notification.Vol.II/(ii)-38405-49 dated 26.10.2004 has authorised Assistant Commissioner of Police (and other gazetted officers of other departments) competent to act under the provisions of COTPA - 2003 and are authorised to compound offences under section 4 or 6 of the said Act either before or after the institution of the proceedings, for the National Capital Territory of Delhi (**Annexure 'A'**).

PROCEDURE FOR PROSECUTION

- The Authorized Officer, if he has reasonable grounds for believing that any person has committed an offence (violated the above provisions) may detain such persons unless the accused person furnishes his name and address, and otherwise satisfies the officer detaining him that he will duly answer any summons or other proceedings which may be taken against him.
- Any person detained under the sub section, shall forthwith be taken before a Magistrate to be dealt with under the procedure provided for summary trials in the Code of Criminal Procedure, 1973.

- Any offence / violation of the above mentioned provisions may either before or after the institution of the prosecution be **compounded by an authorised officer** for an amount which may not exceed two hundred rupees (Annexure-'A').
- Where an offence has been compounded by the authorised officer, the offender, if in custody, shall be discharged and no further proceedings shall be taken against him in respect of such offence.

All the above mentioned provisions of **Rule-4 of COTPA, 2003 and Rule 3 & 4 of the Prohibition of Smoking in Public Places Rules, 2008** have been incorporated in the **licensing conditions** of Registration of Eating House Certificates and their violation is punishable u/s 28 of Delhi Police Act - 1978.

[Handwritten Signature]

(NEERAJ KUMAR) IPS
COMMISSIONER OF POLICE
DELHI

O.B. No. 25 /RB/dated 28/09/2012

No. 3036-3/46/Record Br. PHQ, dated, New Delhi the 28/09/2012

Copy to:-

1. All Special CsP, Delhi.
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6. S.O. & P.A. to C.P., Delhi
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(TO BE PUBLISHED IN THE DELHI GAZETTE PART IV - EXTRAORDINARY)
GOVERNMENT OF NATIONAL CAPITAL TERRITORY OF DELHI
(Department of Health & Family Welfare)
NOTIFICATION

No. F. 1(13)/2004-05/DHS/T.C.A/Notification Vol. II/(ii)- 38405-49

Date: 26 Oct. 2004

No. F. 1 (13)/2004-05/DHS/T.C.A. Notification Vol. II/(ii) - In exercise of the powers conferred by sections 25 and 28 of the Cigarettes and other Tobacco Products (Prohibition of Advertisement and Regulation of Trade and Commerce, Production, Supply and Distribution) Act, 2003 (34 of 2003) read with the Government of India, Ministry of Health and Family Welfare, Notification No. P -16011/1/2004-PH dated the 14th July 2004, the Lt. Governor of the National Capital Territory of Delhi and other officers who hereby authorises the following officers of the Government of NCT of Delhi. Who shall be competent to act under and compound offences committed under section 4 or section 6 of, the said Act, either before or after the institution of the proceedings, for the National Capital Territory of Delhi, with immediate effect: -

SL.NO.	DESIGNATION	DEPARTMENT
1.	OSD to LG	L.G. Secretariat Raj Niwas.
2.	Jt. Secretary (LA)	Delhi Legislative Assembly Vidhan Sabha Complex
3.	SDO (Daryaganj)	Dy. Commissioner Office
4.	SDO (Paharganj)	-do-
5.	SDO (Karol Bagh)	-do-
6.	SDO (Vasant Vihar)	-do-
7.	SDO (Delhi Cantt.)	-do-
8.	SDO (Najafgarh)	-do-
9.	SDO (Kalkaji)	-do-
10.	SDO (Defence Colony)	-do-
11.	SDO (Haus Khas)	-do-
12.	SDO (Vivek Vihar)	-do-
13.	SDO (Preet Vihar)	-do-
14.	SDO (Gandhi Nagar)	-do-
15.	SDO (Connaught Place)	-do-
16.	SDO (Parliament Street)	-do-
17.	SDO (Chankya Puri)	-do-
18.	SDO (HQ-I)	-do-
19.	SDO (LA)	-do-
20.	SDO (Revenue)	-do-
21.	SDO (Civil Lines)	-do-
22.	SDO (Kotwali)	-do-
23.	SDO (Sadar Bazar)	-do-
24.	SDO (Rajouri Garden)	-do-
25.	SDO (Punjabi Bagh)	-do-
26.	SDO (Patel Nagar)	-do-
27.	SDO (Saraswati Vihar)	-do-
28.	SDO (Narela)	-do-
29.	SDO (Model Town)	-do-
30.	SDO (Seelampur)	-do-

31.	SDO (Seemapuri)	-do-
32.	SDO (Shahdara)	-do-
33.	ACPs/HQ (G)	Police Department
34.	ACPs/HQ(P)	-do-
35.	ACPs/HQ (C&T)	-do-
36.	ACPs/Vigilance	-do-
37.	ACPs/Licensing.	-do-
38.	ACPs/D.E. Cell	-do-
39.	ACPs/IBN-10 BN	-do-
40.	ACPs/Police Trg. School	-do-
41.	ACPS/Crime Deptt.	-do-
42.	ACPs/Economic Offence Wing	-do-
43.	ACPs/Railways	-do-
44.	ACPs/State Crime Records Bureau	-do-
45.	ACPs/Crime Against Women Cell	-do-
46.	ACPs/Narcotics & Crime Prevn.	-do-
47.	ACPs/Special Branch	-do-
48.	ACPs/Special Cell	-do-
49.	ACPs/Riot Cell	-do-
50.	ACPs/Communication	-do-
51.	ACPs/IGI Airport	-do-
52.	ACPs/Police Control Room	-do-
53.	ACPs/East District	-do-
54.	ACPs/New Delhi District	-do-
55.	ACPs/North East District	-do-
56.	ACPS/Central District	-do-
57.	ACPs/North District	-do-
58.	ACPs/North West District	-do-
59.	ACPs/South District	-do-
60.	ACPs/South West District	-do-
61.	ACPs/West District	-do-
62.	ACPs/R.P. Bhawan	-do-
63.	ACPS/ Security	-do-
64.	ACPs/Supreme Court Security	-do-
65.	ACPs/Traffic	-do-
66.	ACPs/Prov. & Lines	-do-
67.	ACPs/Special Task Force	-do-
68.	Jr. Labour Commissioner	Labour Department
69.	Jt. Secy. (Admn.) PWD	Land & Building
70.	Jt. Director (Admn)	Dte. of Education
71.	Jt. Director	O/o. Commissioner of Industries
72.	Director	PFA
73.	Jt. Director (Admn)	Social Welfare Deptt.
74.	Jt. Director	Dte. of Training UT Civil Services
75.	Jt. Director	Transport Department
76.	Jt. Director	Dte. of Employment
77.	Dy. Commissioner (Admn.)	Sales Tax Department

78.	Dy. Secretary (Admn)	Secretariat Department
79.	Dy. Secretary	Deptt. of Environment
80.	Dy. Secretary	Urban Development Deptt.
81.	Dy. Director	Dte. of Information & Publicity
82.	Dy. Director (Science)	Dte. of Education
83.	Dy. Director (North)	-do-
84.	Dy. Director (Edu. For all)	Dte. of Education
85.	Dy. Director (Patrachar Vidyalaya)	-do-
86.	Dy. Director (South-West)	-do-
87.	Dr. Director (Sports)	-do-
88.	Dy. Director (TV)	-do-
89.	Dy. Director (Vocational Edn.)	-do-
90.	Dy. Director (East)	-do-
91.	Dy. Director (West)	-do-
92.	Dy. Director (W&S)	-do-
93.	Dy. Director (South)	-do-
94.	Dy. Director (HQ)	-do-
95.	Dy. Director (Central)	-do-
96.	Jt. Director	Manpower & Employment
97.	Jt. Director General	N.C.C.
98.	Dy. Director (Admn)	Planning Department
99.	Dy. Director (Admn)	Deptt. of Training
100.	Dy. Commissioner/Collector (Excise)	Excise & Entertainment
101.	Dy. Commissioner	Food & Supply Deptt.
102.	DCP (H.Q.)	O/o Commissioner of Police
103.	Medical Superintendent	LBS Hospital
104.	Dy. Medical Superintendent	DDU Hospital
105.	Dy. Medical Superintendent	A.A. Ali Hospital
106.	Dy. Medical Superintendent	RTRM Hospital
107.	Dy. Medical Superintendent	Guru Nanak Eye Hospital
108.	Dy. Medical Superintendent (Admn)	GTB Hospital
109.	Director (Admn)	Lok Nayak Hospital
110.	-do-	MAM College
111.	CMO/HOO	Dte. of Family Welfare
112.	CMO	Dte. of Health Services & its subordinate offices.
a.	CDMO.I/c. East District	Dte. of Health Services
b.	CDMO.I/c. West District	-do-
c.	CDMO.I/c. South District	-do-
d.	CDMO.I/c. Central+New Delhi	-do-
e.	CDMO.I/c. North District	-do-
f.	CDMO.I/c. North West Distt.	-do-
g.	CDMO.I/c. South West Distt	-do-
h.	CDMO.I/c. North East Distt	-do-
113.	CDMO.I/c. OPD	GB Pant Hospital
114.	Engineer Officer	Chief Engg. Office (PWD) Zone-I

115.	E.O(I) to C.E. E.O.(II)	Irrigation & Flood (I&F) Control Department
116.	DCA (A)	PAO
117.	Entertainment Tax Officer	Excise Department
118.	Addl. E.T.O.	-do-
119.	DEO (Permit)	-do-
120.	DEO (Rest/Litigation)	-do-
121.	DEO (M&TP)	-do-
122.	Inspector (EIB)	Excise Department
123.	Manager (Airport) AAI	AAI, New Delhi
124.	Sr. Manager (Airport) AAI	-do-
125.	Dy. Airport Director I & II AAI	-do-

By order and in the name of the
Lt. Governor of the
National Capital Territory of Delhi

S.P. Aggarwal
PR. Secretary (H&FW)

No. F. 1(13)/2004-05/DHS/T.C.A./Nolification/Vol II/(ii) 38405-49

Date: the 26th Oct- 2004

Copy forwarded for information & necessary action to the

1. Secretary to Lt Governor Delhi, Rajniwas, Delhi.
2. Secy. (H&FW), Govt. of India, Nirman Bhawan, New Delhi.
3. Pr. Secy (GAD) Govt. of NCT of Delhi, Delhi Secretariat in duplicate (with Hindi version) for publication in the Delhi Gazette.
4. Pr. Secy (Law & Justice) Govt. of NCT of Delhi, Delhi Secretariat.
5. Police Commissioner, Delhi Police, Police HQ Delhi.
6. Secy to Health Minister, GNCTD.
7. HOD of concerned Deptt., GNCTD.
8. Airport Authority of India, IGIA, New Delhi.
9. DHS Govt. of NCT of Delhi.

S.P. AGGARWAL
PR. SECRETARY (H&FW)